NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH BENCH, CHANDIGARH
COURT-II

Item 25
CA(CAA) No. 43/Chd/Hry/2023
(1st Motion)
Under Section 230-232, CA 2013

In the matter of:-

Convergys India Services Pvt. Ltd. .....Transferor Companies

And

Concentrix Services (Netherlands) BV ....Transferee Company

Present :

Mr. Atul V Sood, Advocate for the applicant companies.

Heard the submissions made by the counsel for the petitioners. The counsel for the petitioners has furnished affidavit in compliance to order dated 14.09.2023. This is a demerger proposal wherein three companies are involved. The applicant companies are India-based and non-applicant company is Netherland-based company. This scheme of demerger is related to all the three companies. The proposal in scheme mentions that part of business of Applicant Company No. 1 is getting merged with Applicant Company No. 2 in consideration of transfer of shares by Applicant Company No. 3. The Applicant Company No. 3, which has been mentioned as non-applicantcompany and Netherland-based company (Foreign Company) is giving certain shares. Having placed on record the affidavits from shareholders as well as creditors, the petitioners have prayed for dispensation of the meeting. Order in this matter is reserved.

Sd/- Sd/-

(Umesh Kumar Shukla)
Member (Technical)

(Dr. P.S.N. Prasad)
Member (Judicial)

October 10, 2023
Vriti